

BEFORE THE FEDERAL MARITIME COMMISSION

DOCKET NO. 25-26

Roger Waterloo d/b/a EcoBamboo, Complainant

v.

Ship4wd, Respondent

Date: October 11, 2025

THIRD MOTION FOR RELIEF AND PROCEDURAL CLARIFICATION

Purpose and Scope of Motion

EcoBamboo submits this Third Motion for Relief and Procedural Clarification to formally address the continued silence and procedural ambiguity from Respondent Ship4wd, its presumed counsel Cozen O'Connor (Cozen), and ZIM Integrated Shipping Services Ltd. (ZIM).

In alignment with [the Commission's directive \(CEV-26\)](#) that "parties are expected to proceed with their cases to the extent possible..." during the government shutdown, EcoBamboo initiated informal resolution efforts while the procedural window for restart remained open. That window is now narrowing. Silence from Respondent and its representatives has obstructed resolution, delayed justice, and violated the spirit of fair process.

Although a [response on or before November 10 \(CEV-29\)](#) was not mandated, the Commission's directive to proceed during the shutdown was not followed by Respondent. No engagement was received from Cozen or ZIM by the requested date, reinforcing the pattern of procedural avoidance already documented in the record and in this motion.

This motion seeks judicial intervention to restore procedural integrity, compel engagement, and protect the dignity of Small Business Operators (SBOs) who rely on timely and transparent resolution. This filing constitutes a formal Motion for Relief under Commission procedure. It is not a reiteration—it is a declaration of breach, procedural defiance, and judicial necessity.

I. Clarification of Respondent Identity and Counsel Representation

EcoBamboo now formally clarifies that Ship4wd is a subsidiary of ZIM, as confirmed in the November 03, 2025 [email from Ms. Yustman \(CEV-27\)](#), who stated: *".. give counsel to Ship4wd, which is Zim's subsidiary."* This correspondence also affirms that ZIM is fully informed of the dispute and its procedural posture.

This clarification is essential to preserve procedural transparency and ensure that all parties—parent and subsidiary—are held to the same standard of engagement and accountability.

II. Procedural Posture and Diagnostic Timestamp

Despite prior filings and timestamped flags, no substantive response has been received. Respondent has only submitted a Motion to Dismiss on October 6, 2025, and a Memorandum on October 14, 2025, in response to EcoBamboo's Second Motion. That Memorandum contained no new information and merely reiterated the contents of the October 6 motion.

None of the twenty-two (22) allegations outlined in the [Violation Matrix \(Formal Complaint p.11\)](#) have been substantively rebutted, except for a conditional note in Respondent's Memorandum stating that the fumigation allegation "*would be contested should this matter proceed to the merits.*" No formal Answer to Complaint has been filed.

Respondent's failure to engage directly or to acknowledge EcoBamboo's filings constitutes a strategic delay. EcoBamboo has honored every procedural expectation and extended multiple opportunities for dignified resolution. Silence at this stage is not ambiguity—it is avoidance.

III. Exhaustion of Good Faith and Tone Calibration

EcoBamboo complied fully with the Commission's directive, "Parties are expected to proceed with their cases to the extent possible..." during the government shutdown. On October 29, 2025, EcoBamboo initiated [informal resolution \(CEV-28\)](#) efforts by submitting a direct request to Cozen O'Connor, counsel for Ship4wd. That request was denied within 24 hours, with Cozen stating it would not engage "at this time." No effort was made to explore what resolution might look like, leaving EcoBamboo's good-faith initiative unanswered.

Based on the speed and tone of Cozen's denial, EcoBamboo reasonably concluded that ZIM—the parent company of Ship4wd—was not fully informed of the dispute's scope or procedural posture. To ensure transparency and elevate the matter, EcoBamboo decided, after Cozen's denial, to contact ZIM directly with an [informal request for resolution \(CEV-27\)](#), addressed to Ms. Yustman, legal counsel for both Ship4wd and ZIM.

To further enhance procedural clarity and offer a dignified path forward, EcoBamboo sent a [letter \(CEV-29\)](#) on November 3, 2025, directly to ZIM's Executive Leadership—Mr. Native and Mr. Glickman—outlining that a structured possibility for resolution existed in June 2025. This correspondence ensured that ZIM, as parent company of Ship4wd, was fully informed of the dispute and positioned to engage. Ms. Yustman had previously acknowledged Ship4wd's status as a subsidiary of ZIM and confirmed ZIM's awareness of the dispute.

On November 4, 2025, EcoBamboo formally submitted [Exhibit CX-13 - Ship4wd's Escalation Despite Available Resolution \(CEV-30\)](#) in the docket, which documents the same June 2025 possibility for resolution that Ship4wd declined to pursue, allowing the matter to escalate to its present posture.

These efforts reflect EcoBamboo's commitment to procedural integrity and resolution. They also mark the exhaustion of good faith. EcoBamboo will not initiate further informal outreach. Any future engagement must originate from Respondent, reflect procedural integrity, and be documented accordingly. The record now reflects a clear sequence of engagement, denial, escalation, and documentation.

Prior motion and responses from EcoBamboo documented the breach, operational freeze, and reputational harm. EcoBamboo has calibrated its posture with restraint and fairness, acknowledging Respondent's likely counsel strategy and extending flags for engagement. No reply has followed.

This motion marks the end of deference. EcoBamboo will no longer accommodate procedural ambiguity or counsel choreography designed to delay justice. The record reflects this.

IV. Demand for Judicial Intervention

Despite EcoBamboo's outlined resolution possibility for June 2025 ([CEV-29](#))—served to Cozen and to ZIM's Executive Leadership on November 3—no response has been received. Receipt was explicitly requested by November 10. Silence from both parties, including presumed counsel, constitutes procedural delay and undermines the Commission's directive "*Parties are expected to proceed with their cases to the extent possible...*", during the government shutdown.

This silence is not neutral. It obstructs resolution, delays justice, and signals disregard for procedural integrity. EcoBamboo has complied with every instruction, calibrated tone, and extended multiple pathways for dignified engagement. Respondent has not reciprocated. Furthermore, Respondent still has failed to file an Answer to Complaint or rebut the twenty-two (22) allegations outlined in the Violation Matrix. These allegations remain uncontested. The time afforded to Respondent has been more than sufficient. Choosing to wait until the Commission reopens—while ignoring its explicit guidance—is not procedural prudence. It is procedural defiance.

Such conduct disrespects both the Commission and the Complainant. EcoBamboo has demonstrated restraint, transparency, and a sincere effort to resolve this matter. Respondent's silence, delay, and failure to engage reflect a strategic posture that must now be addressed by judicial authority.

Pursuant to Commission regulations, specifically 46 C.F.R. § 502.70(b), Respondent has fifteen (15) days to serve and file a response to this dispositive motion. The regulation requires that any response include a concise statement of legal basis, citation to authority, and specific responses to material facts with exhibits as appropriate. If no response is filed within that window, EcoBamboo can reasonably assume continued procedural defiance, in violation of the Commission's October 1 directive to proceed with cases to the extent possible.

Respondent's continued refusal to engage informally compels EcoBamboo to file this Motion. Under Commission rules, specifically 46 C.F.R. § 502.70, Respondent is required to answer. This filing evidences EcoBamboo's good-faith effort to resolve the dispute without further escalation, while establishing that Respondent's silence leaves no alternative but formal adjudication.

Justice delayed is justice denied. High-profile counsel does not exempt parties from procedural integrity. The Administrative Law Judge's authority must now be exercised to restore balance and enforce engagement.

V. Operational and Moral Stakes

EcoBamboo continues to operate under extreme constraint. The procedural silence and non-cooperation from Respondent, its presumed counsel Cozen O'Connor, and its Executive Leadership have triggered a full operational freeze. Supplier disengagement, halted install choreography, and exhausted liquidity are now compounded by reputational erosion and civic disruption.

This kind of harm is not limited to business operations for Small Business Operators (SBOs). It directly affects the personal livelihood and stability of SBOs who rely on procedural engagement to sustain their enterprises. When Respondents and their representatives remain silent or obstruct resolution, the burden shifts disproportionately onto the individuals behind these businesses—those who have acted with restraint, transparency, and procedural fidelity. Such silence violates the spirit of fair process and undermines the Commission's directive "Parties are expected to proceed with their cases to the extent possible..." It leaves SBOs exposed to reputational damage, financial collapse, and personal hardship, while larger entities delay without consequence.

The urgency of this matter is underscored by the narrowing restart window. Supplier feedback confirms that approximately six to eight weeks are required to prepare product to export-ready condition, with total process time for the first shipment running about four months. An order placed in November would position arrival by March, aligning with the install season and enabling productive marketing engagement. An order in early December would delay arrival to April, still viable but constrained. However, an order placed at the end of December would push

arrival beyond the restart corridor, foreclosing structured resolution and compounding harm for EcoBamboo while exposing ZIM, as parent company, to reputational and procedural risk.

EcoBamboo's filings and outreach have not only sought to protect its own operational integrity, but also to safeguard ZIM's awareness and engagement as parent company. If the restart window closes without action, the opportunity for structured resolution will be foreclosed, compounding harm for EcoBamboo and exposing ZIM to greater risk.

This motion therefore stands not only as a procedural request, but as a moral declaration. Small Business Operators must not be left to collapse under the weight of corporate silence. The Commission's authority may now be exercised to restore balance, enforce engagement, and protect the dignity of those who have followed the rules.

EcoBamboo has honored every procedural expectation, filed audit-grade documentation, and extended multiple pathways for resolution. Respondent has not reciprocated. The silence is not passive—it is strategic, and it inflicts real harm.

VI. Procedural Distinction and Escalation

This Third Motion is not a repetition of prior filings. It reflects a distinct procedural posture, new factual developments, and escalated relief. Unlike the First Motion, which sought initial engagement, this filing document:

- Respondent's continued silence despite Commission guidance to *"proceed to the extent possible."*
- A failed informal resolution attempt, denied within 24 hours.
- A supplemental outline for resolution served to both counsel and executive leadership.
- The absence of any formal Answer to Complaint after more than thirty (30) days.
- A conditional rebuttal of only one allegation out of twenty-two (22).

This Third Motion therefore reflects not repetition but escalation. Prior filings included a response that the docket classified as a motion; however, Respondent's continued silence now elevates the posture beyond dialogue. At this stage, sanctions are not a collateral threat but the procedural mechanism by which the Administrative Law Judge may convert Respondent's defiance into judicial action. This distinction underscores that EcoBamboo has exhausted informal and responsive channels, and that the record now demands adjudication rather than accommodation.

VII. Relief Requested and Demand for Ruling

EcoBamboo respectfully requests a ruling. The Respondent, its presumed counsel Cozen O'Connor, and its Executive Leadership have had more than thirty (30) days to file an Answer to Complaint and respond to the twenty-two (22) allegations outlined in the Violation Matrix. They have not done so.

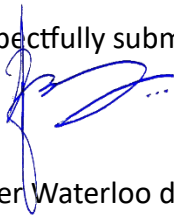
EcoBamboo respectfully requests that the Administrative Law Judge issue the following orders:

1. That Respondent's failure to file an Answer be deemed procedural defiance.
2. That an evidentiary hearing be scheduled forthwith, or in the alternative, that sanctions be imposed.
3. That EcoBamboo's filings be affirmed as audit-grade and warrant expedited review.

The urgency of this matter is underscored by the narrowing restart window, which makes further delay untenable. Respondent's continued silence, despite Commission directives, warrants sanctions that treat uncontested allegations as admitted, waive Respondent's defenses, and advance the case to hearing or decision. This ensures that silence cannot be weaponized to obstruct justice, and that the Commission's mandate to "proceed to the extent possible" is honored in practice.

The time for deference has passed. The Commission's mandate—to ensure fairness, enforce engagement, and protect those who operate in good faith—is now squarely implicated. The record is sufficient to establish breach and procedural defiance. Quantification of final losses and damages will follow. Delay in adjudication compounds harm, and judicial intervention is both warranted and timely.

Respectfully submitted,



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Complainant

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